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Case Number: 25STCV34399 Hearing Date: August 4, 2026 Dept: 224

Barsamian v. Young

TENTATIVE RULING

Plaintiff's Motion for Summary Adjudication of the First Cause of Action for Partition of Property is DENIED.

ANALYSIS

Introduction

On November 24, 2025, Plaintiff Julie Barsamian filed the Verified Complaint in this action, alleging a single cause of action for partition of real property.

On January 22, 2026, Defendant Matthew M. Young filed a Cross-Complaint.

On May 8, 2026, Plaintiff filed a Motion for Summary Adjudication for Interlocutory Judgment for Partition by Sale of the First Cause of Action of Plaintiff's Verified Complaint.

On July 15, Defendant filed an Opposition.

On July 23, Plaintiff filed a Reply.

Evidentiary Objections

Plaintiff submits evidentiary objections to the Declarations of Matthew M. Young and Zachary D. Schorr in support of the Opposition to Plaintiff's Motion for Summary Adjudication.

The evidentiary objections are OVERRULED.

MOTION FOR SUMMARY ADJUDICATION

Plaintiff moves for summary adjudication of the First Cause of Action for Partition of Property on the grounds that the parties hold equal concurrent interests in the Property, that Plaintiff is entitled to partition as a matter of absolute right, and that the Property cannot be equitably divided in kind and must be sold. Plaintiff asks the Court to enter an interlocutory judgment for partition by sale.

Legal Standard

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843). In analyzing such motions, courts must apply a three-step analysis: "(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue."

(Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294). Thus, summary judgment or summary adjudication is granted when, after the Court's consideration of the evidence set forth in the papers and all reasonable inferences accordingly, no triable issues of fact exist and the moving party is entitled to judgment as a matter of law. (CCP § 437c(c); Villa v. McFarren (1995) 35 Cal.App.4th 733, 741).

As to each claim as framed by the complaint, the party moving for summary judgment or summary adjudication must satisfy the initial burden of proof by presenting facts to negate an essential element. (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520). Courts "liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party." (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389). A motion for summary judgment or summary adjudication must be denied where the moving party's evidence does not prove all material facts, even in the absence of any opposition or where the opposition is weak. (See Leyva v. Superior Court (1985) 164 Cal.App.3d 462, 475; Salesguevara v. Wyeth Labs., Inc. (1990) 222 Cal.App.3d 379, 384, 387).

Once the moving party has met the burden, the burden shifts to the opposing party to show via specific facts that a triable issue of material facts exists as to a cause of action or a defense thereto. (CCP § 437c(o)(2)). When a party cannot establish an essential element or defense, a court must grant a motion for summary adjudication. (CCP § 437c(o)(1)-(2)).

A moving plaintiff meets his or her burden of showing that there is no defense to a cause of action "if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto." (CCP § 437c(p)(1).)

First Cause of Action: Partition of Property

"A partition action may be commenced and maintained by any of the following persons: (1) A coowner of personal property. (2) An owner of an estate of inheritance, an estate for life, or an estate for years in real property where such property or estate therein is owned by several persons concurrently or in successive estates." (C.C.P. § 872.210(a).) "The court shall order that the property be divided among the parties in accordance with their interests in the property as determined in the interlocutory judgment." (C.C.P. § 872.810.)

"Notwithstanding Section 872.810, the court shall order that the property be sold and the proceeds be divided among the parties in accordance with their interests in the property as determined in the interlocutory judgment in the following situations: (a) The parties agree to such relief, by their pleadings or otherwise. (b)

The court determines that, under the circumstances, sale and division of the proceeds would be more equitable than division of the property. For the purpose of making the determination, the court may appoint a referee and take into account [the referee's] report." (C.C.P. § 872.820.)

The co-owner of a property has "an absolute right to partition unless barred by a valid waiver." (LEG Investments v. Boxler (2010) 183 Cal.App.4th 484, 493.) Under the prior law, the party seeking partition by sale as opposed to partition in kind had the burden to establish sale was necessary to avoid "great prejudice." (Butte Creek Island Ranch v. Crim (1982) 136 Cal.App.3d 360, 365.) But the Legislature's 1976 enactment of C.C.P. §§ 872.810 and 872.820 expanded the availability of partition by sale and while the statutes continued the preference for partition in kind, the standard was reduced from a burden to show "great prejudice" to a showing that partition by sale would be "more equitable." (Id.; Richmond v. Dofflemyer (1980) 105 Cal.App.3d 745, 754.) This was in part due to a recognition that "[i]n many modern transactions, sale of the property is preferable to physical division since the value of the divided parcels frequently will not equal the value of the whole parcel before division. Moreover, physical division may be impossible due to zoning restrictions or may be highly impractical, particularly in the case of urban property." (Butte Creek 136 Cal.App.3d at 365.) But the statutes did not overturn the burden of proof remaining on the party seeking partition by sale instead of partition in kind as partition in kind remains favored by the law and in the absence of proof to the contrary the presumption for partition in kind will prevail because a forced sale is strongly disfavored. (Id.)

The judgment of partition is left to the discretion of the trial court and the determination of whether partition by sale is more equitable than physical division requires a factual inquiry by the court and when the evidence, even though conflicting, permits the court to reasonably conclude partition by sale would be more equitable to the owners such decision should be upheld absent an abuse of discretion. (See Richmond v. Dofflemyer (1980) 105 Cal.App.3d 745, 758-59, 765-66; Formosa Corp. v. Rogers (1951) 108 Cal.App.2d 397, 411-12 (abuse of discretion standard applied under prior version of partition law requiring showing of "great prejudice" for finding of partition by sale).) This is because "a partition suit is in equity" and "a court of equity has broad powers and comparatively unlimited discretion to apply." (Richmond 105 Cal.App.3d at 758; Cunningham v. Frymire (1958) 160 Cal.App.2d 726, 729 (the trial court's decision will not be disturbed "if there is any substantial evidence" in support and an appellate court will not weigh questions of fact determined by the trial court in a partition action).)

The first type of evidence that justifies partition by sale instead of partition in kind is that the property is so situated that a division into subparcels of equal value cannot be made. (Butte Creek 136 Cal.App.3d at 366.) This is not established by evidence a portion of the property is not equal to the whole, as that is always true in a partition action, nor is it established by evidence that the land is not "fungible" or uniform in character. (Id.) Such showing is made by evidence that the land cannot be divided equally. (Id.) An example is when the major value of the land consists of a water well and without the well the land would have little value so physical division of the land would have required an award of the subparcel with the well to one party and would result in manifest prejudice to the other party that did not receive the well. (Id. (another example is when the land was small lot which included structures located in such a way to preclude equal partition in kind). citing Sting v. Beckham (1949) 94 Cal.App.3d 823; Priddel v. Shankie (1945) 69 Cal.App.3d 319.)

The second type of evidence that justifies partition by sale instead of partition in kind is economic evidence which shows that due to the particular situation of the land, division of the land would substantially diminish the value of each party's interest. (Butte Creek 136 Cal.App.3d at 367.) "The generally accepted test in this regard is whether a partition in kind would result in a cotenant receiving a portion of the land which would be worth materially less than the share of the money which could be obtained through sale of the land as a whole." (Id.) "This is a purely economic test." (Id.) "If plaintiff, who demands that the land be sold, can receive a portion of the land through physical division and that portion could be sold for a sum equal to the amount it could realize through sale of the entire parcel then as a matter of law no economic prejudice can be shown." (Id.) It is a manifest inequity to oust an unwilling cotenant from the land when no economic detriment is suffered. (Id.) An example of the second type of evidence is when a 17.4 acre movie studio had been developed in such a unique manner that physical division would result in damage to the aggregate value of the land in the amount of \$1,500,000.00. (Id. Citing Formosa Corp. 108 Cal.App.2d 397.)

Plaintiff's Evidentiary Showing

In support, Plaintiff offers six material facts supported by the following: the parties acquired the Property as joint tenants by Grant Deed dated October 20, 2021 (Complaint ¶¶ 2, 10, Ex. A; Cross-Complaint ¶ 8); the deed was recorded October 27, 2021 (Complaint ¶ 11, Exh. A); Defendant severed the joint tenancy in April 2025 (Complaint ¶ 20; Cross-Complaint ¶ 14); ownership is 50/50 (Complaint ¶¶ 25, 26; Cross-Complaint ¶ 23); the Property is a single-family home in Studio City that recently underwent substantial renovation (Complaint ¶ 24; Cross-Complaint ¶ 12); and the legal description (Complaint ¶ 3; Cross-Complaint ¶ 18, Exh. A).

Plaintiff has not met her burden, for two reasons.

First, the Motion rests entirely on pleading allegations. Plaintiff filed no declaration, no discovery responses, no authenticated documents, and no request for judicial notice. The Court may judicially notice that the Complaint and Cross-Complaint were filed (Evid. Code § 452(d)), but "a court cannot take judicial notice of hearsay allegations as being true, just because they are part of a court record or file." (*Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1568.) Verification does not cure the defect as to the facts that matter most. Paragraphs 25 and 26, which purport to provide support for the parties' equal interests, are pleaded on information and belief, which "is hearsay and must be disregarded" and furnishes "no proof of the facts stated." (*Star Motor Imports, Inc. v. Superior Court* (1979) 88 Cal.App.3d 201, 204-205.) Paragraph 24 is not a fact but the legal conclusion the Motion asks the Court to reach.

Second, even accepting each stated fact as true, nothing in the record supports partition by sale. Whether a sale would be more equitable than division is a factual inquiry, and the burden of that inquiry rests on Plaintiff. The only fact bearing on the manner of partition is that the Property is a single-family home in Studio City that was recently renovated. There is no evidence of lot size or configuration, placement of the improvements, zoning or subdivision requirements, the value of the Property as a whole, or the value of any divided parcels. Plaintiff has offered neither of the two types of evidence that justify a sale. The memorandum's assertions about highest and best use, demolition, and permitting appear nowhere in the Separate Statement and are unsupported by evidence. Sting permits an inference from "the character and location of the property," but that inference rests on evidence of character and location, of which there was "considerable evidence" in that case. (*Sting v. Beckham*, supra, 94 Cal.App.2d at pp. 824-825.) There is none here. On this record the presumption in favor of division in kind is un rebutted, and it prevails.

Plaintiff has not met her initial burden. The burden therefore does not shift to Defendant to show that a triable issue of material fact exists, and the Court does not reach Defendant's showing.

Separate Statement

Further, the Separate Statement is independently deficient. Each material fact must be stated "in numerical sequence," followed by the evidence establishing it. (Cal. Rules of Court, rule 3.1350(d)(3), (h).) Plaintiff's facts are unnumbered, leaving no means of matching a response to a fact, and the citations identify pleading allegations rather than admissible evidence. (CCP § 437c(b)(1).) Failure to comply with the separate statement requirement "may in the court's discretion constitute a sufficient ground for denying the motion." (*Ibid.*) The Court exercises that discretion here.

Note for the Hearing

The Court is also unable to grant the relief requested for an independent reason the Motion does not address. The Partition of Real Property Act applies to real property held in tenancy in common, absent an agreement in a record governing partition, in actions filed on or after January 1, 2023. (CCP § 874.311(b), (c).) It "control[s] over any provisions of this title that are inconsistent with" it. (CCP § 874.313(b).) On the facts Plaintiff pleads, the Act appears to govern. If so, the Court must determine fair market value by appraisal "before considering the merits of the partition action" (CCP § 874.316(a), (g)), must then notify the parties of Defendant's right to buy Plaintiff's interest (CCP § 874.317(a)), and only thereafter reaches the manner of partition under the "great prejudice" standard of CCP §§ 874.318(a) and 874.319, not the "more equitable" standard of CCP § 872.820(b).

The parties should be prepared to address the Act's application.

Conclusion

Based on the foregoing, Plaintiff's Motion for Summary Adjudication of the First Cause of Action for Partition of Property is DENIED.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.